Supreme Court, U.S.
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No. 98-897

IN THE

SUPREME COURT OF THE UNITED STATES

October Term, 1998

ROBERT E. GABLE, - - - - - *Petitioner*

versus

PAUL E. PATTON; A.B. CHANDLER, III; KENTUCKY REGISTRY OF ELECTION FINANCE; DONALD L. COX; MORRIS E. BURTON; JAMES E. BOYD; and JOHN Y. BROWN, III, - - - - - *Respondents*

REPLY TO BRIEFS IN OPPOSITION

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REPLY TO BRIEFS IN OPPOSITION

1. The Brief in Opposition of the Kentucky Registry Respondents asserts that Petitioner Gable lacks standing to challenge the constitutionality of Kentucky's campaign finance regulations because he is not a declared candidate in this year's gubernatorial campaign even though he ran for governor in 1995 and has expressed interest in running again. Registry Opp. Br. 21-24. This assertion is without merit.

It is well established that persons who have been deterred from acting by the very laws they allege to be unlawful have suffered sufficiently personal and concrete injury to challenge those laws. *See, e.g., International Brotherhood of Teamsters v. United States*, 431 U.S. 324, 362-67 (1977) (holding that non-applicants for a job may receive relief from racially discriminatory employment practices that deterred them from applying). This is especially true in the election context. For example, in *Anderson v. Celebrezze*, 460 U.S. 780 (1983), this Court entertained a challenge to a state's early filing deadline for a place on the presidential ballot, even though the candidate bringing the challenge had missed that deadline. Similarly, in *Clements v. Fashing*, 457 U.S. 957, 962 (1982), this Court recognized the standing of state officeholders to challenge a state rule that required them to resign from their jobs if they ran as candidates for another office, even though none of the challengers had chosen to resign in order to run.

Gable likewise is entitled to challenge a campaign finance law he alleges violates his First Amendment rights, even if he declines to campaign for the governorship unless and until that constitutional defect is removed. Kentucky's election finance laws plainly act as a deterrent to those challengers who, like Gable, do not think that running a race under such restrictions is worth the candle. *See* Al Cross, *Election 1999; GOP Adds Candidate for Governor;*

Peppy Martin files; Other Races Conceded, Louisville Courier-Journal, Jan. 27, 1999, p.1b (noting that Kentucky Republican leaders attributed their party's "lack of interest in the governor's race" in large part to the fact that it "was unwinnable because of the law that limits spending by candidates who agree to take public financing"). It is hardly Gable's fault that Kentucky has kept the challenged regulations in force while this litigation has exceeded the duration of an entire election cycle.

Nor is Gable's challenge "moot," as the Registry Respondents allege, *see* Registry Opp. Br. 23. Precisely because constitutional questions about election practices are difficult to resolve within a single election cycle, this Court has repeatedly declined to find election challenges moot even after the election that gave rise to the challenge is long since over. *See, e.g., Storer v. Brown,* 415 U.S. 724, 737 n.8 (1974) (holding that a challenge to restrictions on independent candidacies could proceed even after an election because the issues it presented would "persist as the . . . statutes are applied in future elections"); *Moore v. Ogilivie,* 394 U.S. 814, 815-16 (1969) (likewise holding that a challenge to election statutes was justiciable because "capable of repetition, yet evading review"). These precedents plainly foreclose any mootness holding here.

2. Both Briefs in Opposition claim that Kentucky's public campaign financing law is a mere selective subsidy scheme that does not burden First Amendment rights because it leaves a candidate who declines to participate no worse off with the program than he would be without it. *See* Registry Opp. Br. 5-21; Patton Opp. Br. 2-8. This claim is incorrect. Kentucky is of course free under this Court's precedents to subsidize only those candidates who agree to participate in the state's scheme, and such a selective subsidy is not in itself a burden on the nonparticipating candidate's rights. But that is not what Kentucky has done. Instead, Kentucky has made its grant of addi-

tional benefits to a participating candidate contingent upon a nonparticipating candidate's own exercise of First Amendment rights. If and only if the nonparticipating candidate spends above $1.8 million does the state lift spending restrictions on participating candidates and match their further fundraising efforts 2-for-1 with public funds. Such a scheme crosses over the line from a simple nonsubsidy of a nonparticipating candidate's speech to a penalty upon that speech, and thus warrants this Court's review.

Nothing in this Court's precedents concerning speech subsidies authorizes a government to make a particular exercise of private speech the trigger for a state-subsidized response. To the contrary, the Court's only decisions reviewing analogous triggers have invalidated them. *See Miami Herald Pub. Co. v. Tornillo*, 418 U.S. 241 (1974); *Pacific Gas & Electric Co. v. Public Util. Comm'n*, 475 U.S. 1 (1986). The Registry Respondents attempt to distinguish those cases on the ground that they involved a tax upon the burdened speakers, who were required in effect to pay for the dissemination of their opponents' speech. *See* Registry Opp. Br. at 13-14. But this attempt is unavailing. For one thing, *Tornillo* and *PG&E* rested on twin First Amendment concerns: the right not to speak was infringed if the compulsory reply was carried, but the right to speak was infringed if the speaker chose silence to ensure that it was not. As the Court stated in *Tornillo*, "Faced with the penalties that would accrue to any newspaper that published news or commentary arguably within the reach of the right-of-access statute, editors might well conclude that the safe course is to avoid controversy," in which case "political and electoral coverage would be blunted or reduced." 418 U.S. at 257. The Kentucky campaign finance statute has precisely such a deterrent effect on protected political expenditures, and for that reason alone warrants this Court's review. In addition, the Kentucky scheme itself imposes an effective tax upon the non-

participating candidate's speech: once he spends more than $1.8 million, he must raise three times as much as the participating candidate in order to stay even.

The difference between a mere nonsubsidy and a subsidy penalizing the exercise of constitutional rights would be clear in any other context. For example, it is one thing for the government to subsidize childbirth but not abortion; it would be quite another for the government to pay a doctor, for every abortion he performed, three times his fee for that service earmarked for the delivery of newborns. It is one thing for the government to offer to pay for a court-appointed psychiatrist to assess a criminal defendant's competence; it would be quite another for the government to provide that if he chooses to pay for his own psychiatric expert the government will fund three psychiatrists to ensure adequate rebuttal. Similarly, the government is free to choose what speech to fund, but it may not deploy subsidies invidiously "in such a way as to [aim] at the suppression of dangerous ideas." *Regan v. Taxation with Representation*, 461 U.S. 540, 548 (1983) (citations and internal quotes omitted). Thus, contrary to Respondents' assertions, the decision below is not consistent with the relevant precedents of this Court.

3. Registry Respondents suggest that Kentucky's campaign finance scheme is too idiosyncratic to warrant this Court's review. Registry Opp. Br. at 24-27. Yet they themselves suggest that any rational public financing scheme would adopt a "trigger" mechanism like Kentucky's. *See* Registry Opp. Br. at 7-8 ("Were it otherwise, it would likely be impossible for a rational candidate to agree to spending limits . . . ."); *see also* Patton Opp. Br. at 9. If that is so, then it is all the more likely that the issues presented here will continue to arise in more and more states. Registry respondents concede that at least several states have already enacted laws like Kentucky's. Registry Opp. Br. at 25. Accordingly, the Petition presents issues of national

importance and electoral urgency warranting this Court's review.

4. Respondents each assert that Kentucky's total ban on campaign contributions during the twenty-eight days preceding an election is a "vital" or "critical" component of the state's efforts to combat the corruption of candidates. *See* Registry Opp. Br. at 29; Patton Opp. Br. at 8. But they fail to offer a single explanation why that is so. While they colorfully chronicle "the pervasive history of corruption in Kentucky politics," Registry Opp. Br. at 29, they offer not an iota of evidence to suggest *when* in an election cycle such corruption allegedly occurs. Nor do they explain why limits on the amount of each contribution are insufficient to prevent capture of political candidates by large donors, without any additional restrictions on the timing. Like a law that authorized the publication of newspapers or books on politics during only eleven months of the year, the 28-day ban does not merely channel but limits the quantity of speech at the core of the First Amendment, and thus warrants this Court's review.

CONCLUSION

For the reasons expressed here and in the Petition for Certiorari, Petitioner respectfully requests that this Court grant the Petition for Certiorari.

Respectfully submitted,

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